



CHAPTER vi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Motherwell Water (Supplementary Supply).

A.D. 1918.

[27th June 1918.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament:

62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Motherwell Water (Supplementary Supply) Order Confirmation Act 1918.

Short title.

A.D. 1918.

SCHEDULE.

MOTHERWELL WATER (SUPPLEMENTARY SUPPLY)

Provisional Order to authorise the Town Council of the Burgh of Motherwell to provide a supplementary water supply to acquire lands and to construct and maintain additional works and for other purposes.

WHEREAS the burgh of Motherwell in the county of Lanark is administered by the provost magistrates and councillors as local authority therein under the Burgh Police (Scotland) Acts 1892 to 1911 and the Public Health (Scotland) Act 1897:

And whereas by the Motherwell Water (Additional Supply) Act 1900 the Town Council were authorised to provide an additional water supply to the burgh for domestic and for trade and manufacturing and other purposes from the Coulter Water in the county of Lanark:

And whereas the Town Council carried out the powers of the said Act and introduced the water supply thereby authorised and now supply water for domestic purposes and for trade and manufacturing purposes within the limits of supply of the Town Council:

And whereas by the Motherwell Water and Sewage Purification Act 1914 the limits of compulsory water supply of the Town Council were extended to include the then existing burgh and further powers were conferred on the Town Council in connection with their water undertaking:

And whereas in consequence of the increased needs of the industrial works in the district for an adequate supply of water for the more expeditious and efficient carrying on of the industries therein the existing water supply of the Town Council has become insufficient to enable them to meet these growing industrial requirements:

And whereas these industrial works so far as within the limits of supply of the Town Council have hitherto been supplied with water for manufacturing purposes by the Town Council

from their existing waterworks so far as they were able to afford the same: A.D. 1918.

And whereas an enlarged supply of water for the said works within the district being of national importance and urgently required it is expedient that the Town Council should be authorised to provide the same and for that purpose to supplement their existing water supply under the powers of this Order and to acquire the lands and construct and maintain the works hereinafter described and to exercise the other powers conferred on the Town Council by this Order:

And whereas it is expedient that such supplementary water supply of the Town Council should be obtained from the River Clyde as hereinafter provided:

And whereas it is expedient that the Town Council should subject to the provisions of this Order be authorised to supply water to any person in the county of Lanark for trade and manufacturing purposes on such terms as the Town Council may fix or as may be agreed with any such person:

And whereas it is expedient that the Town Council should subject to the provisions of this Order be authorised to make agreements with any local authority in the county of Lanark for a supply of water to such authority in such manner and on such terms as may be agreed:

And whereas it is expedient that such supplementary water supply together with the works authorised by this Order should subject to the provisions of this Order form part of and be included for all purposes in the existing water undertaking of the Town Council and that all the powers of the Town Council applicable to the existing water undertaking should subject as aforesaid apply to the said water supply and works:

And whereas in consequence of the urgency of an adequate water supply to public works of national importance in the district being provided by the Town Council under the powers and in accordance with the provisions of this Order it has been agreed that the Ministry of Munitions shall contribute and pay to the Town Council as a free grant towards the cost of the construction of the works authorised by this Order the sum of fifteen thousand pounds and it is expedient that the agreement should be confirmed:

And whereas William Beardmore and Company Limited David Colville and Sons Limited and the Lanarkshire Steel

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A.D. 1918. — Company Limited in respect of the advantages which they may receive under this Order have together agreed to contribute towards the cost of the construction of the works and pay to the Town Council the sum of twelve thousand pounds and it is expedient that the agreement should be confirmed :

And whereas it is expedient that the Town Council should be authorised to raise further money in excess of the aforesaid sums amounting together to twenty-seven thousand pounds by rates assessments and charges for water supply and by borrowing for the purposes of this Order and of the water undertaking of the Town Council :

And whereas estimates have been prepared by the Town Council for the construction and completion of the said supplementary waterworks and other works and for the purchase of lands as follows :—

	£
Purchase of lands and servitudes - - -	1,200
Mains conduits and pipes - - -	46,800
Pumping station buildings machinery and works and road of access and contingencies - -	12,000
	60,000

And whereas the several works included in the said estimates are permanent works and it is expedient that the cost thereof so far as it exceeds the said cumulo sum of twenty-seven thousand pounds should be spread over a term of years :

And whereas it is expedient that the other provisions in this Order contained should be enacted :

And whereas plans and sections showing the lines and levels of the several works authorised by this Order and the lands that may be taken in connection therewith and plans -showing the lands to be acquired and used for the other purposes of this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken or used for the purposes or under the powers of this Order were duly deposited in the offices at Glasgow and Hamilton respectively of the principal sheriff clerk of the county of Lanark and are hereinafter respectively referred to as the deposited plans sections and book of reference :

[8 & 9 GEO. 5.] *Motherwell Water (Supplementary Supply) Order Confirmation Act, 1918.* [Ch. vi.]

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899: A.D. 1918.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the Motherwell Water (Supplementary Supply) Order 1918. Short title.

2. The following Acts and parts of Acts so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order are hereby incorporated with and form part of this Order:— Incorporation of Acts.

The Lands Clauses Acts;

The Waterworks Clauses Act 1847 except the clauses and provisions with respect to the communication pipes to be laid by the undertakers and with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and also with the exception of clauses 68 70 71 and 72 Provided that the clauses of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall apply to the lines of pipes which may be laid under this Order and the word “plan” in the said clauses shall include a section;

The Waterworks Clauses Act 1863;

The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith but such clauses and provisions shall apply only in the case of the works authorised by this Order and in construing the said clauses and provisions “the Company” means the Town Council “the railway” means the works authorised by this Order and “the centre of the railway” means any part of these works.

3. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts Interpretation.

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A.D. 1918. — wholly or partially incorporated herewith shall have the same respective meanings And the several words and expressions to which meanings are assigned by the Motherwell Water and Sewage Purification Act 1914 shall so far as applicable and subject to the provisions of this Order have the same respective meanings And the following words shall have the meanings hereby assigned to them namely :—

“The Water Acts” mean the Motherwell Water (Additional Supply) Act 1900 and the Motherwell Water and Sewage Purification Act 1914.

Power to
make water-
works.

4. The Town Council may subject to the provisions of this Order make and maintain in the lines and according to the levels shown on the deposited plans and sections the waterworks hereinafter described or some of them together with all necessary branch water mains conduits junctions drains channels cuts sluices valves pipes offlets overflows and other subsidiary works and conveniences connected with the said works or any of them and for inspecting maintaining repairing altering and managing the same and may use and appropriate for the purposes of the said works any lands now owned by the Town Council and may compulsorily or by agreement enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the said purposes The said waterworks are—

- (1) A conduit or pipe (Work No. 1) situated wholly in the parish of Cambusnethan and county of Lanark commencing at a point in the River Clyde four hundred and four yards or thereabouts north of the centre of the north parapet of Garrion Bridge on the Ordnance Survey map of the said parish ($\frac{1}{2500}$ scale) edition 1912 thence in an easterly direction through the inclosures numbered 16A and 17 on the said Ordnance map for a distance of three hundred and fifty-two yards or thereby thence generally in a north-easterly direction along the public highway leading from Garrion Bridge to Waterloo for a distance of five hundred and five yards or thereby thence generally in a northerly direction along the old road numbered 65 on the said Ordnance map for a distance of five hundred and ninety-five yards or thereby thence generally in

a north-easterly direction along the public highway leading from Garrion Bridge to Waterloo thence in a north-westerly direction along the public highway leading from Carluke to Wishaw and terminating in the existing reservoir or tank of the Town Council at Thornhill in the inclosure numbered 195 on the said Ordnance Survey map: A.D. 1918.

- (2) A conduit or pipe (Work No. 2) situated in the parishes of Cambusnethan and Dalziel and the burghs of Wishaw and Motherwell and county of Lanark commencing in the reservoir or tank at Thornhill in the said parish of Cambusnethan in the inclosure numbered 195 on the said Ordnance Survey map thence in a northerly and north-westerly direction along the public highway leading from Carluke to Wishaw thence generally in a north-westerly south-westerly westerly north-westerly and westerly direction along Stewarton Street Main Street Glasgow Road Shieldmuir Street and Craigneuk Street all in the burgh of Wishaw thence generally in a westerly and north-westerly direction along Windmillhill Street in the burgh of Motherwell and terminating by a junction with the existing water conduit or pipe of the Town Council at the junction of Windmillhill Street and Crosshill Street:
- (3) A conduit or pipe (Work No. 3) situated wholly in the parish of Cambusnethan and county of Lanark commencing by a junction with the conduit or pipe (Work No. 1) in the public highway leading from Carluke to Wishaw at a point twelve yards or thereby north-west from the continuation of the line of the south-eastern boundary wall of Thornhill reservoir or tank thence in a north-westerly direction for a distance of forty-two yards or thereby and terminating there by a junction with the pipe or conduit (Work No. 2):
- (4) A road of access (Work No. 4) situate wholly in the parish of Cambusnethan and county of Lanark commencing in the public road leading from Garrion Bridge to Waterloo at the north-east corner of the inclosure No. 17 in the aforesaid Ordnance map

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thence in a westerly direction along the northern boundary of the said inclosure No. 17 for a distance of about three hundred and sixty-two yards thence southwards for a distance of eighty yards or thereby in the said inclosure No. 17 and there terminating.

Power to deviate laterally and vertically.

5. The Town Council may in constructing the works by this Order authorised deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation respectively shown thereon and when the line of any work is shown on the said plans as passing along any road and no limits of lateral deviation are marked thereon the Town Council may in constructing such works deviate laterally to any extent within the boundaries of such road and may deviate vertically from the levels of the various works as shown on the deposited sections to any extent not exceeding five feet upwards and ten feet downwards Provided that in the exercise of such powers of vertical deviation the Town Council shall not except in the case of crossing bridges or culverts lay above the ground any pipe which is not so shown on the deposited sections.

Power to alter roads.

6. For the purposes and during the execution of the several works which the Town Council are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Town Council may temporarily break up cross over or under alter or stop up or use any streets highways roads lanes paths bridges railways canals passages sewers drains watercourses gas pipes and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such street highway road lane path bridge or railway or passage or the flow of water gas sewage or electricity in any such sewer drain watercourse canal pipe or apparatus and making full compensation to all persons injuriously affected thereby Provided that the question of providing a temporary substitute shall unless agreed between the Town Council and the road authority be determined by the sheriff whose decision shall be final Provided further that nothing in this section shall extend to authorise any interference with electric apparatus

or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply. A.D. 1918.

7. The Town Council may subject to the provisions of this Order acquire compulsorily or by agreement and may appropriate hold and use the lands hereafter in this section described and shown on the deposited plans and described in the deposited book of reference or some part or parts of such lands and may erect and maintain thereon all necessary pumping stations buildings machinery and works and conveniences necessary for pumping water from the River Clyde authorised by and for the purposes of this Order Provided that the Town Council shall not create or permit any nuisance on any lands and shall not erect or permit the erection of any buildings thereon except such as are required in connection with the water undertaking of the Town Council The said lands are the following :—

A piece of land in the parish of Cambusnethan and county of Lanark being part of the inclosures numbered 16A and 17 on the Ordnance Survey map of the said parish ($\frac{1}{2500}$ scale) edition 1912.

8. The Town Council may by means of the works by this Order authorised abstract water from the River Clyde but not exceeding five million gallons in any one day of twenty-four hours and may pump appropriate divert and impound the same in the existing reservoir of the Town Council at Thornhill and may by means of the said works and the existing waterworks of the Town Council or some of them or some part or parts thereof supply water from such reservoir or from any of the existing waterworks of the Town Council or from the waterworks by this Order authorised for such purposes to such persons and within such limits as the Town Council are by the Water Acts and by this Order authorised and empowered to supply water Provided that the Town Council shall not supply for domestic use water pumped from the River Clyde under the powers of this Order. Power to take water.

9. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Persons under disability may grant servitudes &c.

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A.D. 1918. Town Council any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Town Council may acquire servitudes only in certain cases.

10.—(1) The Town Council may in lieu of acquiring any lands for the purposes of the works authorised by this Order where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Town Council have acquired a servitude only under the provisions of this section the Town Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes have the same rights to use and cultivate the said lands at all times as if the Act confirming this Order had not passed.

(3) Provided always that nothing in this section contained shall authorise the Town Council to acquire by compulsion any such servitudes in any such lands in any case in which the owner in his particulars of claim shall require the Town Council to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision.

For protection of county council of county of Lanark and district committee of Middle Ward.

11. For the protection of the county council of the county of Lanark and the district committee of the Middle Ward of that county who for their respective rights jurisdictions and interests under and in virtue of the Local Government (Scotland) Acts the Roads and Bridges (Scotland) Acts the Public Health (Scotland) Acts the Lanarkshire (Middle Ward District) Water Acts 1892 to 1917 and the Lanarkshire Gas Orders 1914 and 1917 are in this section included under the expression "the county

authorities" the following provisions (unless otherwise agreed upon between the Town Council and the county authorities) shall apply and have effect (that is to say):— A.D. 1918.

- (1) Before constructing any works authorised by this Order or any subsequent repairs thereof the execution of which may in any way interfere with or affect any street highway or bridge under the jurisdiction of the county authorities or any sewer drain water pipe gas pipe electric main or other work belonging to them the Town Council shall give to the county authorities not less than ten days' notice in writing accompanied by plans and sections showing the manner in which such works are proposed to be executed which plans and sections shall be subject to the approval of the county authorities previously to such works being commenced. Provided that if the county authorities do not within seven days after service of such notice on them intimate to the Town Council their approval or disapproval of the said plans and sections the Town Council may proceed to execute the works in accordance therewith. Provided further that in cases of emergency such notice as is reasonably practicable shall be given:
- (2) All mains pipes or works to be laid in or along any street highway or in upon or across any bridge repairable by the county authorities or the roadway over the same shall be laid in such position in such street highway bridge or roadway or at the side thereof and at such depth as the county authorities may reasonably direct:
- (3) In all cases where the Town Council propose to lay mains pipes and works in proximity to any main sewer drain pipe or other work belonging to the county authorities these shall be laid in such positions and at such levels in relation to the main sewer pipe or works of the county authorities as the county authorities may reasonably direct:
- (4) Nothing in this Order shall authorise the Town Council to interfere with the structural part of any bridge repairable by the county authorities without the

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consent in writing of the county authorities and such consent may be given upon such conditions as the county authorities may reasonably determine :

- (5) No main sewer drain pipe or other work or property of the county authorities shall be in any way altered or interfered with except in accordance with plans sections and specifications previously submitted to and approved of by the county authorities which approval shall not be unreasonably withheld and any such alteration or interference shall be made at the expense of the Town Council :
- (6) The county authorities shall not be liable for or in respect of any damage or injury to any main pipe or other works of the Town Council laid down or constructed under the powers of this Order in or on any street highway or bridge or the roadway over a bridge caused by the use of road rollers and other road plant and heavy traffic or resulting from the exercise by the county authorities of the powers vested in them from time to time :
- (7) Nothing in this Order contained shall take away or abridge any power vested or to be vested in the county authorities to construct build lay repair maintain open or break up alter enlarge improve divert or relay or reconstruct any street highway or bridge or any main sewer drain pipe or other work of the county authorities and in the event of the county authorities in the exercise of any such power finding it necessary to interfere with any main pipe or work of the Town Council the Town Council shall at their own cost alter relay or if necessary remove such main pipe or work temporarily or permanently as may be reasonably required to meet the new or changed conditions :
- (8) All works shall be so executed by the Town Council as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any street or highway or over any bridge carrying any street or highway :
- (9) The Town Council in opening or breaking up any street or highway or the roadway over any bridge under

the jurisdiction of the county authorities shall not without the consent of the county authorities have more than one hundred lineal yards open or broken up at any one place at one time in any such street highway or roadway and the Town Council shall complete their operations and restore the said street highway or roadway and the surface thereof to the satisfaction of the county authorities with all reasonable despatch and maintain the same for a period of twelve months from the date of a certificate by the county authorities or their surveyor certifying that such street highway or roadway has been satisfactorily restored The restoration of streets or highways or roadways under this section shall mean and include the causewaying or paving of such as are causewayed or paved and the bottoming metalling rolling and completion of the tracks opened up with materials and in a manner reasonably approved of by the county authorities :

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- (10) The Town Council shall pay to the county authorities the reasonable costs which they may incur in the repair and reinstatement of so much of any street highway or of the roadway of any bridge in which the mains pipes and works of the Town Council are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said mains pipes and works :
- (11) Any extra expenses which may be incurred by the county authorities in carrying out any powers vested or which may be vested in them by any existing or future Acts of Parliament or otherwise in consequence of the construction by the Town Council of works by this Order authorised shall be repaid to the county authorities by the Town Council :
- (12) The Town Council shall pay to the county authorities the costs or expenses they may reasonably incur or be put to in superintending the works authorised by this Order or with reference to any of the matters contained in this section :

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(13) All notices to be given or plans to be submitted under the provisions of this section shall be deemed to be sufficiently served on or submitted to the county authorities if the same be sent to the district clerk at his office in Hamilton:

(14) If any difference at any time arises between the county authorities and the Town Council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbiter to be agreed upon between them or failing such agreement to be appointed by the sheriff on the application of either party.

For protection of corporation of city of Glasgow.

12.—(1) Whereas the corporation of the city of Glasgow (hereinafter called "the corporation") are authorised under the Glasgow Water Acts 1855 to 1915 to take water from the River Clyde for the purpose of supplying water for trading manufacturing and other purposes and whereas water is taken from the River Clyde by owners and occupiers of manufactories and works in the city of Glasgow for the purposes of such manufactories and works the Town Council shall to enable the corporation to satisfy themselves that the quantity of water to be abstracted by pumping from the River Clyde by the Town Council under the powers conferred by this Order does not exceed five million gallons in any one day of twenty-four hours permit the corporation and any person appointed by them at all times to have access to and to examine the pumping station machinery and other works of the Town Council and to test the pumping capacity of such machinery and shall afford to the corporation and any person appointed by them all reasonable and proper facilities for such examination and test and the Town Council shall at any time when called on supply to the corporation a statement certified by the clerk of the Town Council of the quantity of water abstracted from the River Clyde by the Town Council during any day or days of twenty-four hours.

(2) Notwithstanding anything in this Order contained the Town Council shall not without the previous consent in writing of the corporation supply from the existing works of the Town Council and from the works authorised by this Order water to any local authority or person in any area in which the corporation are under the Glasgow Water Acts 1855 to 1915

authorised to supply water or in the area or any part of the area of any local authority for the supply of which area or part thereof as the case may be such local authority obtains water from the corporation. A.D. 1918.

13. The following provisions shall apply and have effect for the protection of the trustees of the Clyde Navigation (hereinafter called "the Clyde Trustees") and of the Clyde Valley Electrical Power Company (hereinafter called "the Clyde Valley Company") :—

For protection of trustees of Clyde Navigation and of Clyde Valley Electrical Power Company.

- (1) The Town Council shall to enable the Clyde Trustees and the Clyde Valley Company to satisfy themselves that the quantity of water to be abstracted by pumping from the River Clyde by the Town Council by means of the works by this Order authorised does not exceed five million gallons in any one day of twenty-four hours permit the Clyde Trustees and the Clyde Valley Company and any person appointed by either of them at all reasonable times to have access to and to examine the pumping station machinery and other works of the Town Council and to test the pumping capacity of such machinery and shall afford to the Clyde Trustees and to the Clyde Valley Company and any person appointed by either of them all reasonable facilities for such examination and test :

- (2) The Town Council shall at any time when called on supply to the Clyde Trustees and to the Clyde Valley Company a statement certified by the clerk of the Town Council of the quantity of water abstracted from the River Clyde by the Town Council during any day or days of twenty-four hours.

14. The following provisions shall unless otherwise agreed apply and have effect for the protection of the provost magistrates and councillors of the burgh of Wishaw (hereinafter in this section referred to as "the corporation") :—

For protection of burgh of Wishaw.

- (1) Before constructing any works authorised by this Order or any subsequent repairs thereof the execution of which may in any way interfere with or affect any streets highways roads lanes paths bridges or passages within the burgh of Wishaw or any sewers drains water

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pipes gas pipes electric mains or other works belonging to the corporation the Town Council shall give to the corporation not less than ten days' notice in writing accompanied by plans and sections showing the manner in which such works are proposed to be executed which plans and sections shall be subject to the approval of the corporation previously to such works being commenced Provided that if the corporation do not within seven days after service of such notice on them intimate to the Town Council their approval or disapproval of the said plans and sections the Town Council may proceed to execute the works in accordance therewith Provided further that in cases of emergency such notice as is reasonably practicable shall be given :

- (2) The Town Council shall execute such works and any subsequent repairs thereof in accordance with the before mentioned plans and sections and under the superintendence and to the reasonable satisfaction of the corporation or of any of their officials specially empowered by them to that effect :
- (3) The works of the Town Council shall be carried out and completed without any undue delay after the commencement thereof and the Town Council shall reinstate and make good any street highway road lane path passage or the roadway over any bridge within the burgh of Wishaw which may be broken up or interfered with by the Town Council and make good any injury or interference at any time caused to any such street highway road lane path passage or roadway or any works of the corporation by the bursting leakage or failure of any work of the Town Council all to the reasonable satisfaction of the corporation and shall at all times whilst any such street highway road lane path passage or roadway shall be opened or broken up cause the same to be properly fenced guarded and lighted to the like reasonable satisfaction and keep such portion of street highway road lane path passage or roadway in good repair to the reasonable satisfaction of the corporation or of any of their officials specially empowered by them to that

effect for six months after the completion of the works and in case of their default in any of the above matters the corporation may do the necessary works and things and recover the costs and expenses incurred by them from the Town Council: A.D. 1918.

- (4) Wherever the Town Council shall have power to lay a water pipe in a street highway road lane path bridge or passage outwith the burgh of Wishaw containing a water pipe which is the property of the corporation the Town Council shall lay their water pipe in such a situation that the operation of laying shall cause the least possible disturbance to the water pipes of the corporation:
- (5) If any difference shall arise between the corporation and the Town Council or between their respective engineers as to any plans and sections to which the approval of the corporation is necessary or as to the mode of executing any works or as to any of the other provisions in this section such difference shall be determined by an engineer to be agreed on by the corporation and the Town Council or failing agreement to be appointed by the sheriff on the application of either party.

15. The following provisions for the protection of the Caledonian Railway Company (hereinafter in this section called "the company") shall unless otherwise agreed between the company and the Town Council apply and have effect (that is to say):— For protection of Caledonian Railway Company.

- (1) The Town Council shall not under the powers of this Order take or acquire by compulsion any lands or property of the company but the Town Council may purchase and the company shall sell such servitude in under over or upon the lands property and works of the company as may be required for making and maintaining in accordance with the provisions of this Order the works by this Order authorised:
- (2) Before commencing any works or operations under the powers conferred on them by this Order affecting any lines of railway and other works or property

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belonging to leased worked or used or occupied or maintainable by the company including any bridge abutments thereof or approaches thereto or the roadway on or under such bridge or any work which may be situated within a distance of fifty feet of such lines of railway and other works or property whether such works and operations of the Town Council are carried out within the limits of supply or in connection with the supply of water within the county of Lanark the Town Council shall submit to the company plans sections working drawings and specifications thereof showing the line and level and the manner in which such works or operations are to be carried out as well as the design materials and mode of execution thereof for the approval of the company which approval shall be deemed to have been given unless the company signify their disapproval within twenty-one days after submission of the said plans sections working drawings and specifications :

- (3) All the said works or operations shall be constructed carried on and completed by the Town Council in strict conformity with the plans sections working drawings and specifications so approved at the sole risk and cost of the Town Council and at the sight and to the reasonable satisfaction of the company and all such works shall be maintained repaired or renewed by the Town Council in all time coming on the lines and levels shown on the said plans sections and working drawings and as described in the said specification at their sole risk and cost and at the sight and to the satisfaction of the company In the event of the Town Council desiring to reconstruct alter or renew any of the said works they shall before commencing such work submit plans sections working drawings and specifications of such reconstruction alteration or renewal to the company for their approval which approval shall be deemed to have been given unless the company signify their disapproval within twenty-one days after the submission of the said plans sections working drawings

and specifications and such reconstruction alteration or renewal shall be carried out and completed by the Town Council and thereafter maintained by them in all time coming as shown on the said plans sections working drawings and described in the specifications so approved all at the sole risk and cost of the Town Council :

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- (4) The Town Council shall not without the previous consent in writing of the company enter upon or alter or interfere with any lines of railway and other works or property described in subsection (2) of this section further or otherwise than may be necessary for constructing and maintaining any of the said works of the Town Council to be laid in upon over or under any such lines of railway and other works or property of which they shall be bound to give the company twenty-eight days' notice except in cases of emergency Provided that nothing in this Order contained shall entitle the Town Council without the consent in writing of the company to exercise the powers of lateral or vertical deviation in constructing the works authorised by this Order so far as passing in under over or across any of the said lines of railway and other works or property described in subsection (2) of this section :
- (5) The Town Council shall give twenty-eight days' previous notice in writing to the company of their intention to commence the construction of any of the works and operations by this Order authorised affecting any lines of railway and other works or property described in subsection (2) of this section and such works and operations shall be completed with all reasonable despatch :
- (6) The Town Council shall pay to and reimburse the company in all reasonable costs charges and expenses which they may incur in connection with the approval of any plans sections working drawings and specifications which may be submitted to them for approval as aforesaid or the construction or subsequent use maintenance repair reconstruction alteration or renewal of the works by this Order authorised

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including any expenses which the company may reasonably incur in connection with the employment of inspectors signalmen watchmen and others in connection with and for the superintendence of the works and operations by this Order authorised during the construction alteration renewal and repair thereof and for all precautions which may require to be taken for the safety of the said lines of railway and other works or property and the working of the traffic thereon on account of the construction alteration renewal or repair of the said works :

- (7) All the said works and operations of the Town Council including the maintenance and any reconstruction alteration renewal or repair thereof shall in so far as the same affect the lines of railway and other works or property described in subsection (2) of this section be constructed executed and completed by the Town Council and so as not to injure alter or interfere with or endanger the structure or stability of any of the said lines of railway and other works or property and the Town Council shall at their own expense execute all under-pinning or strengthening which may be necessary to secure the support or safety of such lines of railway and other works or property or any part thereof and should any danger or injury to or interruption or impediment of or interference with the passage or conduct of traffic on any such lines of railway and other works or property be caused by or be in any way owing to the works or operations of the Town Council or the failure of or defect in any of the said works or operations or be reasonably apprehended in connection therewith the Town Council shall free of all expense to the company execute and do all such works as may be necessary to restore the damage and remove or prevent such danger injury interruption impediment or interference as the case may be or the company in their option and for any of these purposes may enter upon the works or property of the Town Council and execute and do all such works and things as may be necessary to restore

such damage or to remove or prevent such danger injury interruption impediment or interference and the Town Council shall on demand repay to the company all reasonable costs and expenses incurred by them in connection therewith and the Town Council shall also pay all costs and expenses incurred by the company by reason or in consequence of and shall make reasonable compensation to the company for all loss or damage caused by such works and operations to or by reason or in consequence of any such interruption of or impediment to or interference with the traffic on such lines of railway and other works or property : A.D. 1918.

- (8) The Town Council shall also free and relieve and indemnify the company of and from all damages or compensation and expenses which may be recovered from them at the instance of their employees passengers owners of merchandise traders or owners of property adjoining such lines of railway and other works or property or any other person or persons for loss or damage caused by such works and operations to such lines of railway and other works or property or any such interruption of or impediment to or interference with the traffic thereon so far as such loss or damage or interruption impediment or interference shall have been occasioned by or through the acts or default of the Town Council or those for whom they are responsible and the Town Council shall free and relieve the company of all liability to maintain and repair the surface of any roadway falling to be maintained by them pursuant to any Act or agreement so far as any portion of said roadway may be occupied by the works of the Town Council :

- (9) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the company from maintaining and repairing and whenever in their discretion thought necessary reconstructing altering renewing deviating widening or enlarging the lines of railway and other works or property described in subsection (2) of this section without interference

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on the part of the Town Council and without incurring any liability to them or to any person using the works authorised by this Order for any loss injury damages or expenses which may arise from such maintenance repair reconstruction alteration renewal deviation widening or enlarging Provided that in the event of the company exercising any of such powers they shall do so in such manner as to cause as little damage and interference as practicable to and with the said works by this Order authorised and shall give (except in case of emergency in which case notice shall be given as soon as reasonably possible) fourteen days' previous notice in writing to the Town Council before commencing any such operations as may affect any of the said works authorised by this Order Any extra expense which the company may incur in such maintenance repair reconstruction alteration renewal deviation widening or enlarging by reason of the existence of any of the said works shall be paid by the Town Council :

- (10) Any question or difference between the Town Council and the company arising under this section shall be determined by an arbiter to be agreed upon between the Town Council and the company or failing agreement to be nominated by the Board of Trade on the application of either party.

For protection of
Lanarkshire
Tramways
Company.

16. For the protection of the Lanarkshire Tramways Company (hereinafter in this section called "the company") the following provisions shall unless otherwise agreed between the Town Council and the company apply and have effect (that is to say) :—

- (1) The laying down construction execution alteration improvement enlargement extension maintenance repair or renewal of any conduit pipe or other work in the exercise of the powers contained in this Order in or under any part or portion of any street or road in which part or portion of any tramway of the company is laid shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the company and only

according to such plans and sections and in such manner as shall be submitted to and reasonably approved of by him in writing or in the case of difference as may be determined by arbitration in manner hereinafter provided. Provided that if the said engineer shall not signify his approval or disapproval of any plans or sections so submitted to him within ten days after the same are delivered to him he shall be deemed to have approved thereof: A.D. 1918.

- (2) All such works shall be done by and at the expense of the Town Council who shall restore and make good to the reasonable satisfaction of the said engineer any portion of any street or road which the company are liable to maintain so far as the same may be disturbed or interfered with by or owing to any operations of the Town Council. Provided always that if the company elect so to do where any works are required to be laid in or under the portion of any street or road repairable by the company they may themselves lay the same at the reasonable cost charges and expenses of the Town Council but provided nevertheless that any works so laid by the company shall be laid under the superintendence and to the reasonable satisfaction of the engineer of the Town Council:
- (3) All such works shall be executed and maintained so as to cause as little injury as possible to the tramway works of the company and as little interruption as possible to the conduct or passage of the company's traffic thereon:
- (4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the bursting leakage or failure of any works of the Town Council (only however so far as such bursting leakage or failure is attributable to acts or defaults of the Town Council their contractors agents or workmen) the Town Council shall make compensation to the company in respect thereof and the amount of such compensation shall be determined by arbitration as hereinafter provided:

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- (5) The Town Council shall give ten days' notice in writing to the company before commencing any such works as aforesaid except in case of emergency when such notice as is reasonably practicable shall be given:
- (6) Any additional expenses which the company may incur in any repair renewal or alteration of their tramways and works by reason of the existence of any conduit pipe or work of the Town Council laid down constructed or executed in the exercise of the powers contained in this Order in any street or road in which such tramways and works of the company are or may be situate shall be paid by the Town Council to the company:
- (7) If any question or difference shall arise between the Town Council and the company in respect of any matters in this section referred to such question or difference shall be referred to the decision of an arbiter to be named by the sheriff on the application of the Town Council or the company.

Owners may be required to sell part only of certain lands and buildings.

17. And whereas in the construction of the works authorised by this Order or otherwise in exercise of the powers of this Order it may happen that portions only of the lands and property shown on the deposited plans and numbered thereon 23 28 and 35 in the parish of Cambusnethan may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the said lands and property and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the jury arbiters or other authority to be appointed under the provisions of the Lands Clauses Act be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Town Council the portions only of the said properties so required without the Town Council being obliged or compellable to purchase the whole or any greater portions thereof the Town Council paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested by severance or otherwise.

18. In addition to the lands authorised to be taken as aforesaid the Town Council may by agreement purchase any lands not exceeding five acres for the purpose of making depots and other buildings and conveniences in connection with the works by this Order authorised. Provided that the Town Council shall not create or permit a nuisance on such last-mentioned lands.

A.D. 1918.

Lands for extraordinary purposes.

19. The Town Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limiting powers of Town Council to abstract water.

20. The powers of the Town Council for the compulsory purchase of lands and for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order.

Limiting time for purchase of lands.

21. If the waterworks authorised by this Order are not completed within five years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Town Council for making and completing the same shall cease except as to so much thereof as is then completed.

Period for completion of works.

22. Sections 20 21 and 22 of the Act of 1900 shall mutatis mutandis apply to this Order and the waterworks authorised to be constructed by this Order. Provided that in this Order "the commissioners" in the said sections shall mean the Town Council.

Application of sections of Act of 1900.

23. Subject to the provisions of this Order the Town Council may from the existing works of the Town Council and from the works authorised by this Order supply water by agreement to any local authority in the county of Lanark in such quantity and at such times and subject to such terms and conditions as may be agreed.

Supply of water by agreement to local authorities.

24. Subject to the provisions of this Order the Town Council may from the existing waterworks of the Town Council and from the works by this Order authorised by agreement with any person supply water in the county of Lanark for any of the purposes specified in section 25 of the Act of 1900 in such quantity and at such times and subject to such terms and conditions as may be agreed. Provided always that

Supply of water by agreement.

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A.D. 1918. — any supply of water under this section shall not prejudicially affect or restrict the supply of water from time to time required within the limits of compulsory supply or the supply of water to the district committee of the Upper Ward of the county of Lanark provided for by the Act of 1900 Provided further that the supply of water under this section beyond the limits of compulsory supply of the Town Council shall be subject to the consent of the local authority authorised or empowered to supply water in the area within which such supply is to be given.

Confirmation of agreement with Minister of Munitions.

25. The agreement made between the Town Council and the Minister of Munitions as set forth in the First Schedule to this Order is hereby confirmed and made binding on the parties thereto.

Confirmation of agreement with William Beardmore and Company Limited and others.

26. The agreement made between the Town Council and William Beardmore and Company Limited David Colville and Sons Limited and the Lanarkshire Steel Company Limited as set forth in the Second Schedule to this Order is hereby confirmed and made binding on the parties thereto.

Confirmation of agreement with Middle Ward District Committee.

27. The agreement made between the Town Council and the district committee of the Middle Ward of the county of Lanark as set forth in the Third Schedule to this Order is hereby confirmed and made binding on the parties thereto.

For protection of James Hamilton Houldsworth.

28. For the protection of James Hamilton Houldsworth of Coltness or other the owner or owners for the time being of those parts of the lands of Coltness in the parish of Cambusnethan in the county of Lanark which are bounded by the River Clyde (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed between the owner and the Town Council apply and have effect (that is to say):—

The Town Council shall but only if and when they require to and do abstract water from the River Clyde under the powers of this Order to enable the Town Council to afford the supply of water which they are bound to give to the industrial works entitled to demand the same in this Order and subject to the consent of the local authority of the district being first obtained thereto provide to the owner or his tenants or vassals in the

aforesaid parts of the lands of Coltness at a point on the said lands to be agreed between the owner and the Town Council below the commencement of the conduit or line of pipe (Work No. 1) by this Order authorised a sufficient supply of water for industrial purposes and that on terms not less favourable than the most favourable terms granted to other consumers Provided that the owner shall at his own expense provide and maintain all necessary pipes meters and gauges sufficient to afford and ascertain such supply Provided further that the owner shall not be entitled to make any junction with any of the pipes of the Town Council but any such junction shall be made solely by the Town Council at the expense of the owner and the owner shall pay at such rate as may be due for such supply at any time on demand Provided also that any such supply of water in this section shall be without prejudice to the supply for trade purposes within the limits of compulsory supply : A.D. 1918.

Notwithstanding anything shown upon the deposited plans and sections the Town Council shall construct and thereafter maintain the conduit or pipe (Work No. 1) and the road of access (Work No. 4) by this Order authorised on such lines and levels as the owner may reasonably require all at the sight and to the satisfaction of the owner or his engineer for the time being :

Any measures necessary to be taken at any time and from time to time for protection of said Work No. 1 so far as in or upon the property of the owner and rendered necessary by the utilisation of said property for the erection of buildings or for any other purpose shall be executed by the Town Council at their own expense.

29. The Town Council may in addition to any sums already borrowed or authorised to be borrowed by them for the purposes of their water undertaking and less the cumulo sum of twenty-seven thousand pounds aforesaid borrow— Power to borrow.

- (a) For the purchase of lands and servitudes one thousand two hundred pounds ;
- (b) For the water mains conduits and pipes forty-six thousand eight hundred pounds ;

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A.D. 1918.

(c) For pumping stations buildings machinery and works and road of access and contingencies twelve thousand pounds ;

(d) For payment of the costs charges and expenses of and the obtaining and confirming of this Order the sum requisite for that purpose ;

and may make and grant mortgages or other securities of the several rates rents and charges authorised by the Water Acts and this Order in security of the money so borrowed and interest thereon and any sum so to be borrowed may be borrowed on the terms of the repayment thereof by annuity instalments or otherwise.

Repayment
of borrowed
money.

30. The Town Council shall pay off any money borrowed by them under this Order—

(1) For the purchase of lands and the construction of works authorised by this Order within thirty-five years from the date or dates of borrowing ;

(2) For payment of the costs of this Order within five years from the commencement of this Order.

Money not
to be bor-
rowed except
with consent
of Treasury.

31. Notwithstanding anything in this Order contained the Town Council shall not under the powers of this Order borrow any money (other than money required for the payment of the costs of and in connection with the obtaining and confirming of this Order) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Application
of money
borrowed.

32. The sums borrowed by the Town Council on mortgage or cash account or otherwise under the authority of this Order except any sums borrowed for current expenses shall be applied only to purposes to which capital is properly applicable.

Reservation
of prior
mortgages.

33. Nothing in this Order shall prejudice or affect the priority or other rights or remedies under any mortgages or securities or obligations granted by the Town Council before the commencement of this Order and then subsisting.

Protection of
lender from
inquiry.

34. No person lending money to the Town Council shall be bound to inquire as to the observance by the Town Council of any provision of this Order or be bound to see to the application or be answerable for any loss or non-application of such money or any part thereof.

35. The works by this Order authorised shall form part of the water undertaking of the Town Council authorised by the Water Acts and all the provisions of the Water Acts and this Order so far as they relate to the water undertaking of the Town Council shall apply to the water undertaking inclusive of the works by this Order authorised.

A.D. 1918.
—
Application
of Water
Acts.

36. The costs charges and expenses of and incidental to the preparing for and obtaining this Order or otherwise in relation thereto shall be paid by the Town Council out of any money to be borrowed or received by them under this Order or out of any water rates assessments and charges leviable within the burgh.

Costs of
Order.

A.D. 1918.

S C H E D U L E S.

FIRST SCHEDULE.

THIS AGREEMENT made the Fifth day of April One thousand nine hundred and eighteen between THE PROVOST MAGISTRATES AND COUNCILLORS OF THE BURGH OF MOTHERWELL in the County of Lanark Scotland representing the Burgh of Motherwell (hereinafter referred to as "the Burgh") of the one part and THE MINISTER OF MUNITIONS (hereinafter referred to as the "Minister" which expression shall include the Minister of Munitions from time to time) of the other part.

WHEREAS the burgh are seeking to obtain extended powers for the supply of water in the district served by the burgh and are promoting a Provisional Order entitled Motherwell Water (Supplementary Supply) Order a copy of the draft Order being hereto annexed :

And whereas the Minister is of opinion that the carrying out of the works referred to in the said Order is a matter of national importance and has with the approval of the Lords Commissioners of His Majesty's Treasury provisionally agreed to make a contribution towards the cost of the said works :

Now it is hereby agreed as follows :—

1. The burgh shall use its best endeavours to obtain the said extended powers and shall thereafter proceed with due diligence to carry out the works referred to in the said draft Order so as to give an additional supply of water to steel works and other munition factories situate in the district served by the burgh at the earliest possible moment.

2. In consideration of the premises the Minister agrees that he will pay to the burgh as a free grant towards the cost of the said works the sum of fifteen thousand pounds such payment to be made within six calendar months of the date upon which the construction of the said works is commenced.

3. The said agreement by the Minister is conditional upon the construction of the said works being sufficiently advanced to make the additional supply of water thereby contemplated available for the companies referred to in the section of this Order the marginal

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addition of which is Confirmation of agreement with William Beard- A.D. 1918.
more and Company Limited and others on or before the Thirty-first
day of July One thousand nine hundred and eighteen.

4. This Agreement is made subject to such alterations as Parliament
or the Secretary for Scotland may see fit to make therein.

As witness

WILLIAM PORT Chief Acting Magistrate.
JAMES BURNS Town Clerk.

JEANIE ANNAND Witness.

RAY T. ROBERTSON Witness.

Witness to the signature of Sir John Mann } JOHN MANN.
on behalf of the Minister of Munitions }

ROBERT R. J. TURNER
Secretary Munitions Works Board
Ministry of Munitions Whitehall Place
London S.W.

SECOND SCHEDULE.

AGREEMENT between THE PROVOST MAGISTRATES AND COUN-
CILLORS OF THE BURGH OF MOTHERWELL (hereinafter called
“the Town Council”) of the one part and WILLIAM
BEARDMORE AND COMPANY LIMITED Steel Manufacturers
Mossend DAVID COLVILLE AND SONS LIMITED Steel Manu-
facturers Motherwell and THE LANARKSHIRE STEEL COMPANY
LIMITED Steel Manufacturers Motherwell (hereinafter together
called “the companies”) of the other part.

WHEREAS the Town Council are promoting an Order under the Private
Legislation Procedure (Scotland) Act 1899 to obtain parliamentary
powers enabling them to take a supplementary supply of water from
the River Clyde by means of the works described in the deposited
draft Order and to authorise the Town Council to provide a supply of
water to certain industrial works:

And whereas it was a condition of the promotion by the Town
Council of the Order that the Town Council should be reimbursed
the cost of construction of the works to the extent of twenty-seven
thousand pounds of which twelve thousand pounds should be con-
tributed and paid to the Town Council by the companies:

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It has therefore been agreed and is hereby agreed as follows:—

The companies shall within six months after the commencement of the construction of the works pay to the Town Council as a contribution towards the cost thereof the sum of twelve thousand pounds and on receipt of the said sum the Town Council shall apply the same towards construction of the works in such way and manner as they think proper This Agreement is made subject to such alterations as Parliament or the Secretary for Scotland may see fit to make thereon: In witness whereof—

JEANIE ANNAND Witness.

RAY T. ROBERTSON Witness.

GEORGE T. NEILSON Witness

R. HENDERSON Witness.

J. MACKAY Witness.

T. THOMSON Witness.

AND. GRAY Witness.

J. BINNIE TAIT Witness.

WILLIAM PORT Acting Chief Magistrate.

JAMES BURNS Town Clerk.

WM. BEARDMORE Director.

D. GIRDWOOD Secretary.

JOHN CRAIG Director.

JAS. B. ALLAN Director.

W. TORRANCE Secretary.

JNO. STRAIN Director.

ROBERT ROBERTSON Director.

DANIEL M'NAUGHTON Secretary.

THIRD SCHEDULE.

MINUTE OF AGREEMENT between THE PROVOST MAGISTRATES AND COUNCILLORS OF THE BURGH OF MOTHERWELL (hereinafter called "the Town Council") and THE DISTRICT COMMITTEE OF THE DISTRICT OF THE MIDDLE WARD OF THE COUNTY OF LANARK (hereinafter called "the district committee").

WHEREAS the Town Council have made application to the Secretary for Scotland for an Order under the Private Legislation Procedure (Scotland) Act 1899 intituled "An Order to authorise the Town Council of the burgh of Motherwell to provide a supplementary water supply to acquire lands and to construct and maintain additional works and for other purposes" which Order seeks to empower them to abstract water from the River Clyde and to supply the same to industrial works within the burgh of Motherwell and by arrangement to other local authorities:

And whereas the district committee are desirous of obtaining a supply of water from the Town Council for the purpose of enabling

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them to augment their supplies to certain industrial works in their district and for other purposes: A.D. 1918.

And whereas the Town Council are willing to afford a supply of water to the district committee for the purposes aforesaid:

And whereas it is right and proper that the terms and conditions which are to apply to the arrangement between parties should be reduced to writing:

Therefore the Town Council and the district committee have agreed and do hereby agree as follows:—

First—In the event of the Town Council obtaining the powers sought by them under their application to the Secretary for Scotland for an Order as aforesaid they shall proceed with all possible speed to execute the works authorised by the said Order for the abstraction of water from the River Clyde and as and from the completion of the said works (which are contemplated to require for their execution a period of six months) and the delivery of the water therefrom into their tank at Waterloo they shall subject as aftermentioned afford to the district committee a quantity of water suitable for domestic use from their present gravitation water supply not exceeding one million gallons per day of twenty-four hours. The Town Council shall be obliged as they hereby bind and oblige themselves to supply the said quantity of water if desired by the district committee but there shall (except to the extent hereinafter mentioned) be no obligation upon the district committee to take the said quantity of water. In the event of inability of the Town Council to grant a supply of water through failure in the sources of supply burst or leaking pipes caused by mineral workings or otherwise breakdown of machinery or other apparatus or appliances or from any other cause the Town Council shall not be liable to the district committee for any loss or damage thereby caused to the district committee or others. Provided however that the Town Council shall in any such event take all possible measures for having the supply restored with the least possible delay.

Second—The water to be supplied by the Town Council to the district committee shall be delivered regularly throughout the twenty-four hours of the day and from day to day by means of a connecting pipe or pipes laid between the existing pipes belonging to the Town Council at Waterloo Cross and the existing pipe belonging to the district committee at Waterloo Cross or at other points agreed on between the parties.

Third—The district committee shall be obliged as they hereby bind and oblige themselves to take during the period of this Agreement an average minimum quantity of five hundred thousand gallons of water per day of twenty-four hours throughout each year from the

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A.D. 1918. Town Council or in any event to pay to the Town Council the value of such quantity of water at the price aftermentioned In calculating the daily average quantity of water under this Article the year shall be reckoned at three hundred working days.

Fourth—The District Committee shall pay for the water supplied to them by the Town Council at the following rates They shall pay at the rate of threopence for every one thousand gallons of water supplied in each year up to one hundred and eighty million gallons and at the rate of twopence three farthings per one thousand gallons for all water supplied in any year beyond the said quantity of one hundred and eighty million gallons For the purpose of ascertaining the quantity of water supplied by the Town Council a Siemen's meter or meters shall be fixed at the point of connection or points of connection between the pipes of the Town Council and the district committee and the quantity of water recorded by the said meter or meters shall be primâ facie evidence that the same has been supplied to the district committee The cost of providing and installing the said meter or meters and of laying the connecting pipe between the pipes of the Town Council and the district committee shall be borne wholly by the district committee The connecting pipes and meter shall be maintained by the district committee and shall be their exclusive property at the termination of this agreement.

Fifth—Notwithstanding what is hereinbefore provided the Town Council if they have water to spare may afford to the district committee an additional quantity of water beyond the one million gallons per day before-mentioned and any such additional supply shall be charged for at the price of twopence halfpenny per thousand gallons ascertained as aforesaid.

Sixth—This Agreement shall subsist and endure for a period of seven years from the date when water is first supplied by the Town Council to the district committee On the expiry or earlier termination of this Agreement the parties shall at the expense of the district committee arrange for the disconnection of their pipes and the removal of said meter or meters.

Seventh—The water to be supplied by the Town Council to the district committee shall be from their present gravitation systems and suitable for domestic use.

Eighth—The district committee shall not be responsible for any payment or charge beyond the charge for the water supplied to them by the Town Council as aforesaid and the expense of the meter or meters and piping as provided in Articles Fourth and Sixth hereof and in particular they shall not be responsible for any expenditure in connection with the works to be executed by the Town Council for

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securing the water supply from the River Clyde aforesaid or for the obtaining of the necessary powers from Parliament therefor or for any liability other than the payment for the water supplied to them in terms of this Agreement. A.D. 1918.

Ninth—The parties hereto bind and oblige themselves to implement and fulfil the whole terms of this Agreement and their respective parts thereof under the penalty of five hundred pounds to be paid by the party failing to the party performing or willing to perform over and above performance.

Tenth—In the event of any dispute arising between the Town Council and the district committee as to the true intent meaning or effect of this Agreement or of anything that may follow thereupon the same shall on the application of either of the parties be determined by the sheriff of the county of Lanark.

Eleventh—This Agreement is made subject to such alterations as Parliament or the Secretary for Scotland may see fit to make therein and shall be scheduled to and confirmed by the Provisional Order. Should any alteration be made in this Agreement by Parliament or the Secretary for Scotland which in the opinion of the Dean of Faculty of Advocates for the time being is material hereto either party may withdraw therefrom.

Twelfth—The expenses of this Agreement shall be borne equally by the parties. In witness whereof—

JEANIE ANNAND Witness.

WILLIAM PORT Acting Chief
Magistrate.

RAY T. ROBERTSON Witness.

JAMES BURNS Town Clerk.

ANDREW SHEARER Witness.

GEORGE FRASER.

JAMES MCGOUGAN Witness.

ROBERT LAMBIE.

W. E. WHYTE District Clerk.

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